

Court No. - 39

Case :- WRIT - C No. - 2385 of 2021

Petitioner :- M/S Star Agro

Respondent :- Madhyanchal Vidyut Vitran Nigam Limited And 3 Others

Counsel for Petitioner :- Subodh Kumar,Udit Chandra

Counsel for Respondent :- Mukesh Kumar Singh

Hon'ble Naheed Ara Moonis,J.

Hon'ble Dinesh Pathak,J.

Sri Mukesh Kumar Singh, learned counsel appearing on behalf of Power Corporation prays for and is granted three days time to obtain instructions with regard to the computation of electricity dues against the petitioner as mentioned in the provisional assessment.

Put up this case on 03.02.2021 in the additional cause list.

Order Date :- 28.1.2021

Saurabh

Court No. - 39

Case :- WRIT - C No. - 2385 of 2021

Petitioner :- M/S Star Agro

Respondent :- Madhyanchal Vidyut Vitran Nigam Limited And 3 Others

Counsel for Petitioner :- Subodh Kumar, Udit Chandra

Counsel for Respondent :- Mukesh Kumar Singh

Hon'ble Naheed Ara Moonis, J.

Hon'ble Dinesh Pathak, J.

Heard Sri Udit Chandra, learned counsel for the petitioner and learned Standing Counsel appearing on behalf of Power Corporation.

The instant petition has been filed seeking following reliefs:-

" (i) To issue a writ, order or direction in the nature of mandamus calling for records.

(ii) To issue a writ, order or direction in the nature of certiorari quashing the impugned provisional assessment order dated 09.09.2020 passed by respondent no. 4.

(iii) To issue writ, order or direction in the nature of mandamus declaring the entire inspection and assessment proceedings as illegal, void and time barred.

(iv) To issue writ, order or direction in the nature of mandamus declaring the impugned provisional assessment order dated 09.09.2020 passed by respondent no. 4 as illegal and arbitrary.

(v) To issue, writ or direction in the nature of mandamus directing the respondents to pay Rs. 1.00 Lakh per month from 06.09.2020 till the electricity connection is restored or till the decision of this writ petition whichever is later for illegally harassing the petitioner or to impose heavy cost upon the respondents which this Hon'ble Court may deem fit and proper.

(vi) To issue, writ order or direction in the nature of mandamus directing the respondents to restore the electricity connection of petitioner, bearing Account No. 7803579548 and Service connection No. MV 176965 forthwith."

It is submitted by the learned counsel for the petitioner that the consequential proceedings of demand notice, issued against the petitioner, is itself bad in the eyes of law as the mandatory provision of Section 126 read with Clause 6.8 of Electricity Supply Code, 2005 has not been complied with while checking the premises and submitting the provisional assessment notice by the respondent-authority. The provisional assessment has been treated as final assessment without giving any opportunity of hearing to the petitioner. In this regard, the petitioner had

moved a representation that is still pending for consideration.

Learned counsel appearing on behalf of Power Corporation submits that on the basis of checking of the premises the petitioner was found using electricity by tampering the meter for industrial purposes and hence, the recovery proceedings has rightly been initiated against him. There is Rs. 40,26,475.03/- due against the petitioner.

The matter requires consideration.

Learned counsel for the respondents-Power Corporation is directed to file counter affidavit within three weeks'. Learned counsel for the petitioner shall have one week thereafter to file rejoinder affidavit.

The learned counsel for the petitioner has submitted that the electricity connection has been disconnected since 06.09.2020. In such circumstances, the electricity connection of the petitioner is directed to be restored only on depositing an amount of Rs. 5,00,000/- by the petitioner before respondent no. 4 within a period of one month.

Let the matter be listed in the week commencing 01.03.2021.

Order Date :- 3.2.2021

Saurabh

Court No. - 3

Case :- WRIT - C No. - 2385 of 2021

Petitioner :- M/S Star Agro

Respondent :- Madhyanchal Vidyut Vitran Nigam Limited And 3 Others

Counsel for Petitioner :- Subodh Kumar,Udit Chandra

Counsel for Respondent :- Mukesh Kumar Singh

Hon'ble Shekhar B. Saraf,J.

Hon'ble Prashant Kumar,J.

1. The present writ petition has been appearing in the Warning List under the heading "Oldest Pending Cases in this High Court for Priority Hearing".
2. None appears on behalf of the petitioner even in the revised call.
3. Learned Standing Counsel appears on behalf of the State respondents.
4. Upon perusal of the record, it appears that no cause of action survives, and accordingly, the matter is consigned to record.
5. The writ petition is disposed of.
6. In the event, the petitioner is of the view that the cause of action still survives, liberty is granted to the petitioner to file an application for recall/variation/modification of this order in accordance with law.

Order Date :- 4.8.2025

Dev

(Prashant Kumar,J.) (Shekhar B. Saraf,J.)